IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD SPECIAL BENCH
COURT NO. I

Date – 26.09.2022
CP (CAA) 24/AHM/2021 IN
CA (CAA) No. 87 of 2022

[An Application filed under Section 230-232 of the Companies Act, 2013 for (compromise, arrangements and amalgamations)]

In the matter:

Mr. Parag Sheth Liquidator of
M/s. Maxroth Impex Private Limited
(Petitioner Company under liquidation) …Applicant

Clarification

The instant application was heard and reserved for passing of order, on the perusal of the record it is found that the Regional Director & Registrar of Companies have made numerous observations in their reports which have not been duly replied by the Applicant to the aforesaid concerned authority. Moreover no reply has been filed to the observations of the Regional Director & Registrar of Companies, before this Tribunal.

It is also noted that as per Regulation 31A (9) of the Insolvency and Bankruptcy Board Of India (Liquidation Process) Regulations 2016, the Stakeholder's Consultation Committee shall advise the Liquidator for any act or representation. However with this application no such minutes of meeting of the Stakeholder's Consultation Committee has been annexed.

In view of the above, we are of the considered view that the applicant must clarify the issues above mentioned.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

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